



Bill Number: S.C.R. 1048

Mesnard Floor Amendment

**Reference to: JUDICIARY AND ELECTIONS
Committee Amendment**

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Removes language defining *excessive marijuana smoke or odor* and removes language establishing *excessive marijuana smoke or odor* as a criminal nuisance.
2. Redefines *excessive marijuana smoke or odor* as airborne emissions resulting from the burning, heating or vaporizing of marijuana or marijuana products that both:
 - a) are detectable by a reasonable person of ordinary sensibilities on other private property; and
 - b) occur for more than 30 consecutive minutes on a single occasion or on three or more separate days within a 30-day period.
3. Deems that excessive marijuana smoke or odor that crosses a property boundary and substantially and unreasonably interferes with the use and enjoyment of a nearby private property is a private nuisance.
4. Deems that excessive marijuana smoke or odor is a public nuisance if the person's conduct is intentional or the person knowingly and substantially interferes with the comfortable enjoyment of life or property.
5. Specifies that lawful possession or use of marijuana does not preclude a finding of nuisance, except that a court may consider possession of a valid registry identification card as a mitigating factor.
6. Provides that a person is not liable for committing a private nuisance unless the person has received notice of the interference and fails to abate it within five days.
7. Allows an affected property owner or resident to seek injunctive relief, compensatory damages for loss of use and enjoyment, costs and reasonable attorney fees and other equitable relief the court deems appropriate.
8. States that state law does not preempt a local ordinance that is more protective of private property rights.
9. Requires an affected property owner or resident to first file a complaint with the local jurisdiction before filing an action with the state, if that city, town, or county has adopted an ordinance regulating excessive marijuana smoke or odor.
10. Allows an affected property owner or resident to bring an action in justice court if the local jurisdiction declines to act or does not take final action within 30 days after the complaint is filed.

11. States that a homeowner's association or condominium association is not precluded from taking action against a property owner.
12. Establishes that a person commits failure to comply with a marijuana smoke nuisance abatement order if both of the following exist:
 - a) a court of competent jurisdiction or a city, town or county acting under lawful authority has issued a written order directing the person to abate excessive marijuana smoke or odor that constitutes a nuisance; and
 - b) the person knowingly violates or refuses to comply with the order.
13. Specifies that each day a violation continues after an order is served constitutes a separate offense.
14. Establishes that failure to comply with a marijuana smoke nuisance abatement order is a petty offense.

MESNARD FLOOR AMENDMENT
SENATE AMENDMENTS TO S.C.R. 1048
(Reference to JUDICIARY AND ELECTIONS Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{Orange lowercase underlining in double curly brackets} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{Orange lowercase strikeout in double curly brackets}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The resolution as proposed to be amended is reprinted as follows:
2 1. Under the power of the referendum, as vested in the Legislature,
3 the following measure, relating to nuisances, is enacted to become valid
4 as a law if approved by the voters and on proclamation of the Governor:

AN ACT

AMENDING SECTIONS 12-991, 13-2908 AND 13-2917, ARIZONA REVISED
STATUTES; RELATING TO NUISANCES.

Be it enacted by the Legislature of the State of Arizona:

<<Section 1. Section 12-991, Arizona Revised Statutes,
is amended to read:

~~12-991. Nuisance; applicability; residential property
used for crime; action to abate and prevent;
notice; definitions~~

~~A. Residential property that is regularly used in the
commission of a crime is a nuisance, and the criminal activity
causing the nuisance shall be enjoined, abated and prevented.~~

1 ~~B. If there is reason to believe that a nuisance as~~
2 ~~described in subsection A of this section exists, the attorney~~
3 ~~general, the county attorney, the city attorney, an~~
4 ~~association of homeowners or property owners established by a~~
5 ~~recorded contract or other declaration, including a~~
6 ~~condominium association as defined in section 33-1202 and a~~
7 ~~planned community association as defined in section 33-1802,~~
8 ~~or a resident of a county or city who is affected by the~~
9 ~~nuisance may bring an action in superior court against the~~
10 ~~owner, the owner's managing agent or any other party~~
11 ~~responsible for the property to abate and prevent the criminal~~
12 ~~activity.~~

13 ~~C. The court shall not assess a civil penalty against~~
14 ~~any person unless that person knew or had reason to know of~~
15 ~~the criminal activity.~~

16 ~~D. An injunction that is ordered pursuant to this~~
17 ~~article shall be necessary to protect the health and safety of~~
18 ~~the public or prevent further criminal activity.~~

19 ~~E. An order shall not affect the owner's interest in~~
20 ~~the property unless all of the following apply:~~

21 ~~1. The owner is a defendant in the action.~~

22 ~~2. The owner knew of the criminal activity.~~

23 ~~3. The owner failed to take reasonable, legally~~
24 ~~available actions to abate the nuisance.~~

25 ~~F. If the owner, the owner's managing agent or the~~
26 ~~party responsible for the property knows or has reason to know~~
27 ~~of the criminal activity and fails to take reasonable, legally~~
28 ~~available actions to abate the nuisance, a governmental~~
29 ~~authority may abate the nuisance. The court may assess the~~
30 ~~owner for the cost of abating the nuisance. On recording with~~
31 ~~the county recorder in the county in which the property is~~
32 ~~located, the assessment is prior to all other liens,~~
33 ~~obligations or encumbrances except for prior recorded~~
34 ~~mortgages, restitution liens, child support liens and general~~
35 ~~tax liens. A city, town or county may bring an action to~~
36 ~~enforce the assessment in the superior court in the county in~~
37 ~~which the property is located.~~

38 ~~G. For purposes of this section, an owner, the owner's~~
39 ~~managing agent or the party responsible for the property is~~
40 ~~deemed to know or have reason to know of the nuisance if the~~
41 ~~owner, the owner's managing agent or the party responsible for~~
42 ~~the property has received notice from a governmental authority~~
43 ~~of documented reports of criminal offenses occurring on the~~
44 ~~residential property.~~

45 ~~H. A law enforcement agency, a city attorney, a county~~
46 ~~attorney, the attorney general or any other person who is at~~
47 ~~least twenty-one years of age may serve the notice provided~~
48 ~~for in subsection G of this section, either personally or by~~
49 ~~certified mail. If personal service or service by certified~~

1 mail cannot be completed or the address of the person to be
2 notified is unknown, notice may be served by publishing the
3 notice three times within ten consecutive days in a newspaper
4 of general circulation in the county in which the property is
5 located. In all cases a copy of the notice shall be posted on
6 the premises where the nuisance exists.

7 i. The notice shall be printed in at least twelve-point
8 type in substantially the following form:

9 Notice

10 This is formal notice that the property at (insert
11 address and unit number if applicable) has had (insert number
12 of) arrests or (insert number of) documented reports of
13 alleged criminal activity and is considered a nuisance under
14 section 12-991, Arizona Revised Statutes. A copy of the
15 police report numbers is attached. Police reports are
16 available at (insert applicable police agency).

17 Within five business days you must begin to take action
18 that is legally available to you to abate the nuisance from
19 the property. If you fail to do so, a restraining order to
20 abate and prevent continuing or recurring criminal activity
21 will be pursued.

22 If you fail to cooperate to abate the nuisance, the
23 appropriate authorities will abate the nuisance and their
24 costs will be a lien on the property.

25 You may contact (local agency) in order to obtain
26 information on how to abate the nuisance.

27 j. For the purposes of this article:

28 1. "CRIME" INCLUDES THE CREATION OF EXCESSIVE MARIJUANA
29 SMOKE AND ODOR.

30 1. 2. "Owner" means a person or persons or a legal
31 entity listed as the current title holder as recorded in the
32 official records of the county recorder in the county in which
33 the title is recorded.

34 2. 3. "Owner's managing agent" means a person,
35 corporation, partnership or limited liability company that is
36 authorized by the owner to operate and manage the property. >>

37 <<<<Section 1. Section 13-2901, Arizona Revised Statutes, is
38 amended to read:

39 13-2901. Definitions

40 In this chapter, unless the context otherwise requires:

41 1. ["EXCESSIVE MARIJUANA SMOKE OR ODOR" MEANS MARIJUANA SMOKE
42 OR ODOR THAT IS CAPABLE OF BEING DETECTED BY A PERSON ON THE PRIVATE
43 PROPERTY OF ANOTHER PERSON.

44 2.] "Marijuana":

45 (a)] Means all parts of any plant of the genus cannabis[,]
46 from which the resin has not been extracted, whether growing or not,
47 and the seeds of such [A] plant. [Marijuana]

~~[(b)] Does not include the mature stalks of such [A] plant[,] or the sterilized seed of such [A] plant [which] [THAT] is incapable of germination.~~

~~[2.] [3.] "Public" means affecting or likely to affect a substantial group of persons.>>>~~

~~<<Sec. 2. Section 13-2908, Arizona Revised Statutes, is amended to read:~~

~~13-2908. Criminal nuisance; presumption; classification~~

~~A. A person commits criminal nuisance:~~

~~1. If, by conduct either unlawful in itself or unreasonable under the circumstances, such THE person recklessly creates or maintains a condition which THAT endangers the safety or health of others.~~

~~2. By knowingly conducting or maintaining any premises, place or resort where persons gather for purposes of engaging in unlawful conduct.~~

~~B. IT IS PRESUMED THAT A PERSON WHO CREATES EXCESSIVE MARIJUANA SMOKE [AND] [OR] ODOR CAUSES A CONDITION THAT ENDANGERS THE SAFETY OR HEALTH OF OTHERS.~~

~~B. C. Criminal nuisance is a class 3 misdemeanor.>>~~

~~<<Section 1. Title 12, chapter 7, article 12, Arizona Revised Statutes, is amended by adding section 12-991.01, to read:~~

~~12-991.01. Excessive marijuana odor; interference; nuisance; failure to comply; violation; classification; definition~~

~~{[A. EXCESSIVE MARIJUANA SMOKE OR ODOR THAT CROSSES A PROPERTY BOUNDARY AND SUBSTANTIALLY AND UNREASONABLY INTERFERES WITH THE USE AND ENJOYMENT OF NEARBY PRIVATE PROPERTY CONSTITUTES A PRIVATE NUISANCE. LAWFUL POSSESSION OR USE OF MARIJUANA DOES NOT PRECLUDE A FINDING OF NUISANCE UNDER THIS SECTION, EXCEPT THAT A COURT MAY CONSIDER AS A MITIGATING FACTOR POSSESSION OF A VALID MARIJUANA REGISTRY IDENTIFICATION CARD AS DEFINED IN SECTION 36-2801.~~

~~B. A PERSON IS NOT LIABLE UNDER THIS SECTION UNLESS THE PERSON HAS RECEIVED NOTICE OF THE INTERFERENCE AND FAILS TO ABATE IT WITHIN FIVE DAYS.~~

~~C. AN AFFECTED PROPERTY OWNER OR RESIDENT MAY SEEK INJUNCTIVE RELIEF, COMPENSATORY DAMAGES FOR LOSS OF USE AND ENJOYMENT, COSTS AND REASONABLE ATTORNEY FEES AND OTHER EQUITABLE RELIEF THE COURT DEEMS APPROPRIATE.~~

~~D. THIS SECTION DOES NOT PREEMPT A LOCAL ORDINANCE THAT IS MORE PROTECTIVE OF PRIVATE PROPERTY RIGHTS. IF A CITY, TOWN OR COUNTY HAS ADOPTED AN ORDINANCE REGULATING EXCESSIVE MARIJUANA SMOKE OR ODOR, AN AFFECTED PROPERTY OWNER OR RESIDENT SHALL FIRST FILE A COMPLAINT WITH THE LOCAL JURISDICTION BEFORE FILING AN ACTION UNDER THIS SECTION. IF THE LOCAL JURISDICTION DECLINES TO ACT OR DOES NOT TAKE FINAL ACTION WITHIN THIRTY DAYS AFTER THE COMPLAINT IS FILED, THE AFFECTED PROPERTY OWNER OR RESIDENT MAY BRING AN ACTION IN JUSTICE COURT. THIS SECTION DOES NOT PRECLUDE A HOMEOWNERS'~~

1 ASSOCIATION OR CONDOMINIUM ASSOCIATION FROM TAKING ACTION AGAINST A
2 PROPERTY OWNER.

3 E. A PERSON COMMITS FAILURE TO COMPLY WITH A MARIJUANA SMOKE
4 NUISANCE ABATEMENT ORDER IF BOTH OF THE FOLLOWING EXIST:

5 1. A COURT OF COMPETENT JURISDICTION OR A CITY, TOWN OR
6 COUNTY ACTING UNDER LAWFUL AUTHORITY HAS ISSUED A WRITTEN ORDER
7 DIRECTING THE PERSON TO ABATE EXCESSIVE MARIJUANA SMOKE OR ODOR THAT
8 CONSTITUTES A NUISANCE PURSUANT TO THIS SECTION OR AN APPLICABLE
9 LOCAL ORDINANCE.

10 2. THE PERSON KNOWINGLY VIOLATES OR REFUSES TO COMPLY WITH
11 THE ORDER IS SERVED.

12 F. EACH DAY A VIOLATION CONTINUES AFTER THE ORDER CONSTITUTES
13 A SEPARATE OFFENSE.

14 G. FAILURE TO COMPLY WITH A MARIJUANA SMOKE NUISANCE
15 ABATEMENT ORDER IS A PETTY OFFENSE.

16 H. FOR THE PURPOSES OF THIS SECTION, "EXCESSIVE MARIJUANA
17 SMOKE OR ODOR" MEANS AIRBORNE EMISSIONS RESULTING FROM THE BURNING,
18 HEATING OR VAPORIZING OF MARIJUANA OR MARIJUANA PRODUCTS THAT BOTH:

19 1. ARE DETECTABLE BY A REASONABLE PERSON OF ORDINARY
20 SENSIBILITIES ON OTHER PRIVATE PROPERTY.

21 2. OCCUR FOR MORE THAN THIRTY CONSECUTIVE MINUTES ON A SINGLE
22 OCCASION OR ON THREE OR MORE SEPARATE DAYS WITHIN A THIRTY-DAY
23 PERIOD.}}>>>

24 Sec. 2. Section 13-2917, Arizona Revised Statutes, is
25 amended to read:

26 13-2917. Public nuisance; abatement; presumption;
27 classification

28 A. It is a public nuisance, and is no less a nuisance
29 because the extent of the annoyance or damage inflicted is
30 unequal, for anything:

31 1. To be injurious to health, indecent, offensive to
32 the senses or an obstruction to the free use of property that
33 interferes with the comfortable enjoyment of life or property
34 by an entire community or neighborhood or by a considerable
35 number of persons.

36 2. To unlawfully obstruct the free passage or use, in
37 the customary manner, of any navigable lake, river, bay,
38 stream, canal or basin, or any public park, square, street or
39 highway.

40 B. It is a public nuisance for any person to sell,
41 offer to sell, transfer, trade or disseminate any OBSCENE item
42 ~~which is obscene~~ as defined in section 13-3501, within two
43 thousand feet, measured in a straight line, of the nearest
44 boundary line of any of the following:

45 1. Any building used as a private or public elementary
46 or high school.

47 2. Any public park.

48 3. Any residence district as defined in section 28-101.

1 C. The county attorney, the attorney general or the
2 city attorney may bring an action in superior court to abate,
3 enjoin and prevent the activity described in subsections A and
4 B of this section.

5 D. ~~{{IT IS PRESUMED THAT THE CREATION OF}}~~ EXCESSIVE
6 MARIJUANA SMOKE ~~[AND]~~ [OR] ODOR ~~{{PURSUANT TO SECTION~~
7 ~~12-991.01}}~~ IS ~~{{INJURIOUS TO HEALTH, INDECENT, OFFENSIVE TO~~
8 ~~THE SENSES AND AN OBSTRUCTION TO THE FREE USE OF PROPERTY~~
9 ~~THAT}}~~ ~~{{A PUBLIC NUISANCE IF THE PERSON'S CONDUCT IS~~
10 ~~INTENTIONAL OR THE PERSON KNOWINGLY AND~~
11 ~~SUBSTANTIALY}}~~ INTERFERES WITH THE COMFORTABLE ENJOYMENT OF
12 LIFE OR PROPERTY ~~{{AND IS A PUBLIC NUISANCE}}}~~.

13 ~~D.~~ E. Any person who knowingly maintains or commits a
14 public nuisance or who knowingly fails or refuses to perform
15 any legal duty relating to the removal of a public nuisance is
16 guilty of a class 2 misdemeanor.

17 2. The Secretary of State shall submit this proposition to the
18 voters at the next general election as provided by article IV, part 1,
19 section 1, Constitution of Arizona.

20 Enroll and engross to conform

21 Amend title to conform

J.D. MESNARD

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